

January 18, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 8786
(ELEVENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of limited quantities of compressed gases, Division 2.2, in accumulators which deviate from the required retest parameters. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED:
49 CFR §§ 173.306(f)(2)(iii) and (f)(3) and 175.3, except as specified herein.
5. BASIS: This special permit is based on the application of STABILUS dated January 5, 2004, submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identification Number	Packing Group
Articles, pressurized pneumatic or hydraulic containing non-flammable gas.	2.2	UN3164	N/A
Consumer Commodity	ORM-D, as appropriate	As appropriate	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Prescribed packaging is a non-refillable accumulator as shown in Drawings F 2690 or F 2694 having not more than 100 cubic inches volume capacity. Packagings having a volume capacity not exceeding 30 cubic inches must be designed and fabricated for a burst pressure of no less than 4 times the charge pressure. Packagings having a volume capacity greater than 30 cubic inches but not over 100 cubic inches must be designed and fabricated for a burst pressure of not less than 5 times the charge pressure.

b. A lot is defined as the quantity of 1000 or less accumulators successively produced over a production shift not exceeding 10 hours, and having identical size, design, construction, material, heat treatment and quality. The test accumulators must be a subassembly, closed at one end in the same manner as the finished product; the other end where the seal package is installed must be sealed by the test machine in a position similar to that of the sealed package in the finished product. The following qualification tests must be performed:

(1) One test accumulator from each lot must be burst tested and pass the burst pressure requirements in paragraph 7(a) of this special permit.

(2) Two accumulators, one from the beginning and one from the end of each lot must be pressure tested to at least 2.5 times the charge pressure without leakage or distortion.

c. If a lot fails to pass either of the above tests, an additional four sets of accumulators taken from that lot may be tested to qualify the lot. If any of the accumulators fail the qualification tests, that lot must be rejected.

d. Each packaging manufactured under the authority of this special permit must be marked as follows:

(1) The outside of each packaging must be plainly and durably marked "DOT-SP 8786".

(2) Each packaging must be marked either (1) with the name of the manufacturer and location (City and State) of the facility at which it is manufactured or (2) with the registration symbol designated for the specific manufacturing facility.

e. Each package must be prepared and shipped in accordance with the following:

(1) The accumulators must be packed in a strong outside packaging as prescribed in § 173.301(a)(9).

(2) The outside of each package must be plainly and durably marked "INSIDE CONTAINERS COMPLY WITH DOT-SP 8786".

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package or its contents and it is reoffered for transportation in conformance with this special permit and the HMR.

b. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

c. The limited quantities of compressed gas in accumulators under this special permit may be re-classified as an ORM-D material.

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- d. Packagings permanently marked 'DOT-E 8786', prior to October 1, 2007, may continue to be used under this special permit for the remaining service life of the packaging or until the special permit is no longer valid. Packagings marked on or after October 1, 2007, must be marked 'DOT-SP 8786'.
- e. Shipping papers displaying 'DOT-E 8786' may continue to be used until October 1, 2007, provided the special permit remains valid.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only, and passenger-carrying aircraft.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each cargo vessel and aircraft used to transport packages covered by this special permit. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law 49 U.S.C. 5101 et seq.:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/special_permit Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: dl